

Copyright Guide 2020

(Note that a clear, comprehensive and regularly updated guide to copyright in schools is available at

Smartcopying: The Official Guide to Copyright Issues for Australian Schools and TAFE

<http://www.smartcopying.edu.au/>

<https://www.smartcopying.edu.au/information-sheets/schools>

This St Michael's Guide is also available, with additional links to useful sites in

Staff Information / Information on the College Intranet)

The following is a guide to the Copyright Act's provision for educational institutions and the procedures required at St. Michael's to conform to these provisions.

All creative works are automatically covered by copyright. This includes works published electronic form, (e.g. on the Internet). If copyright is infringed the penalties are severe.

The South Australian Commission for Catholic Schools (SACCS), on behalf of South Australian Catholic Schools, subscribes to various Copyright Licence providers on an annual basis. These include: Copyright Agency (print and digital copying licence), APRA (Public Performance, Audio Visual recording licence), AMCOS (School photocopying licence), Roadshow Public Performance licence, Screenrights licence.

It is the responsibility of all members of St. Michael's staff to ensure that the following requirements of the law are observed.

All staff and students who reproduce and/or communicate copyright material have an obligation to develop their understanding of the relevant requirements of the *Copyright Act 1968 as amended*, and to ensure that any content downloaded from the internet or uploaded to school hosted servers does not infringe copyright.

PRINT MATERIALS

The Copyright Agency licence gives the right to individual employees of a school to make single or multiple copies of the following for teaching purposes

The hard copying rules apply to material in printed form (e.g. books, printed newspapers, magazines, journals or periodicals).

Hard Copy Work	Amount That Can Be Copied
Books	10% of the pages or 1 chapter
Newspapers, magazines, journal	1 article in a journal, more than 1 if on the same subject matter
Anthologies	15 pages e.g. one short story
Artistic Works (photographs, cartoons, diagrams and drawings) <u>with accompanying text</u>	The whole of the artistic work

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Artistic Works <u>with no accompanying text</u> (e.g. a slide, photograph of a painting)	The whole of the work if it has not been separately published or if published if it is not available within 30 days at an ordinary commercial price
Technical manuals	10% of the pages or 1 chapter
Plays, screenplays	10% of the pages
Sheet music	10% of the pages

WORKS IN ELECTRONIC FORM

THE Copyright Amendment (Digital Agenda) Act 2000 incorporates the electronic copying rules that apply to text and artistic works material in electronic form (e.g. on-line newspapers, e-books, CD-Roms and web pages) and is referred to as the EUS (Electronic Use Scheme).

Electronic Work	Amount That Can Be Copied
CD-Roms	10% of the words
Website	10% of the words
Online-publications (e-zines, on-line newspapers)	1 article per day or per edition, two or more may be copied if on the same subject matter.
Artistic Works (photographs, cartoons, diagrams and drawings) <u>with accompanying text</u>	The whole of the artistic work
Digital Anthology	If paginated and more than 200 pages, one work of up to 15 pages. Otherwise, no more than 10 per cent of the words of the anthology.
Other print material on the internet (screen plays, plays)	10% of the pages
Electronic versions of sheet music	10% of the pages

PRINTED SHEET MUSIC AND SCORES

St. Michael's has also entered into a licensing agreement which, for a fee, provides certain rights to copy music.

The AMCOS Licence agreement gives the school the right to make limited copies of printed music materials. Check information displayed in the printing areas, or with library staff, for details of music copying limits. The Head of the Music Department will authorise the purchase of music sheets and scores for the use of teaching and performance.

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AUDIO VISUAL MATERIAL AND COMPUTER SOFTWARE

Broadcasts

The Audio Visual Department strictly adheres to the guidelines for the copying of broadcasts for educational institutions. Any recording from any other source must be approved by Audio Visual staff BEFORE being used with students.

COPYING OF PRE-RECORDED (i.e. NON-BROADCAST) MATERIAL

Copying of pre-recorded material such as commercially purchased DVDs, CDs, audio CDs or records is a breach of Copyright. Schools and/or individuals could be prosecuted.

COPYING OF COMPUTER PROGRAMMES

Copying of computer programmes can only be done according to the instructions issued with each programme i.e. it may be permissible to make one back-up copy.

Apart from this any copying of computer programmes is a breach of Copyright. Schools and/or individuals may be prosecuted.

PURCHASE OF PRE-RECORDED DVDs / FILMS

Commercial DVDs can be purchased for school use provided:

- the DVD is for educational use during normal school hours
- the Head of Department concerned is to authorise the purchase of the DVDs.

NOTE:

Classification guidelines as detailed in the Audio Visual Policy Statement are must be adhered to. (last updated Nov 2019). Available on <https://stmichaelscollege.cspace.net.au/Policies>

Audio visual staff must be made aware of all use of film and DVDs on school premises, or at functions sponsored by the school, to ensure no actions breach copyright law.

COPYRIGHT FREE MATERIALS

Digital technologies have revolutionised the way in which content is created and shared in education. Teachers and students alike can communicate, share and modify all kinds of content, from video to images and music, in new and interesting ways. The use of digital forums like websites, wikis and blogs in the classroom is rapidly expanding. With these new opportunities, there come various copyright challenges.

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Teachers should become familiar with websites that allow free educational use. They include:

- the National Digital Learning Resources Network: <http://www.ndlrn.edu.au/default.asp>
- the Creative Commons website: www.creativecommons.org
- the Creative Commons educational material portal: <http://creativecommons.org/education/>
- Wikimedia Commons: http://commons.wikimedia.org/wiki/Main_Page

CREATIVE COMMONS

Creative Commons presents a solution to this problem. This copyright licensing scheme opens up a whole swag of content that teachers and students can freely copy, communicate, remix and repurpose. Permission from the copyright owner does not need to be sought as permission has already been granted.

The Creative Commons provides an alternative licensing system so that authors, musicians and other creators can grant rights to the public to use their work without payment but still retain control over their copyright material. Schools can use Creative Commons resources such as music, film clips and photographs in their projects and teaching resources free of charge.

CONDITIONS FOR USING CREATIVE COMMONS AND OTHER MATERIALS

The licence terms under which items are available on these websites vary. Generally, you are asked to **attribute (acknowledge) the name of the original creator when you use a copy of their work**. Others require you to attribute the original creator and send them a copy of any resources you create which incorporate their material. Check the licence terms on each item before use.

CREATIVE COMMONS LICENCE SYMBOLS

Creative Commons licensed material can be identified by the use of one of the following symbols. Usually a notice with the words "*Some Rights Reserved*" will appear with one or more of these symbols. More information about the symbols used in Creative Commons licences is available at: <http://creativecommons.org.au/licences>

Licence	Symbol	Type of Use	You Can	Attribution Required
Attribution (by)		Commercial and non commercial	Copy and enhance (adapt or modify), redistribute (publish, display, exhibit, publicly perform or communicate eg by email or by placing on a website) and license to others on any terms.	Yes

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Attribution Share Alike (by-sa)		Commercial and non commercial	Copy, enhance and redistribute but you must make the new work available on same licence terms as original	Yes
Attribution No Derivatives (by-nd)		Commercial and non commercial	Copy but not enhance. Redistribute only in original form.	Yes
Attribution Non- commercial (by-nc)		Non Commercial only	Copy, enhance and redistribute. License to others on any terms.	Yes
Attribution Non- commercial Share Alike (by-nc-sa)		Non Commercial only	Copy, enhance and redistribute but you must make the new work available on same licence terms as original	Yes
Attribution Non- commercial No Derivatives (by-nc-nd)		Non commercial only	Copy but not enhance. Redistribute only in original form.	Yes

For more information on Using Creative Commons and How to find Creative Commons material go to
<http://www.smartcopying.edu.au/information-sheets/schools/creative-commons-information-pack>

